

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Information Technology Procurement Office
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
for Solutions For Enterprise-Wide Procurement (SEWP) V

1. **Federal Acquisition Regulation (FAR) 6.303-2(b)(1) – Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for other than full and open competition.”**

This document is a justification for other than full and open competition (JOFOC) prepared by the National Aeronautics and Space Administration (NASA) Information Technology Procurement Office (ITPO).

The procuring agency is NASA, and the contracting activity is ITPO.

2. **FAR 6.303-2(b)(2) – The nature and/or description of the action being approved:**

This justification provides the rationale for contracting by other than full and open competition to award an extension to the Solutions for Enterprise-Wide Procurement (SEWP) V contracts identified in Attachment 1. The current ordering period of SEWP V is May 1, 2015 - April 30, 2025, (1- 5 Year Base Period with 1- 5 Year Option Period). The current value of the SEWP V contracts are \$20B each.

The SEWP V contract extension will be for a period of no more than 12 months (to include a 6-month extension and two 3-month options). The total IDIQ maximum value will not be increased.

3. **FAR 6.303-2(b)(3) – A description of the supplies or services required, to meet the Agency’s needs (including the estimated value):**

SEWP V is a Multiple Award Government-wide Acquisition Contract (GWAC) that allows Firm Fixed Price (FFP) delivery orders. The SEWP V GWAC provides NASA and all federal agencies with a full suite of information technology (IT) solutions for communication and audio-visual solutions, inclusive of products and services, that simplify governmental access and industry offerings across the entire IT solutions and services landscape.

The current ordering period expires April 30, 2025. This action requests a 6-month extension to the current ordering period to November 1, 2025, and two additional option periods of 3-months each. A 12-month extension would have an estimated value of approximately \$12 billion dollars; however, the total contract values will remain unchanged. If the options are exercised, the total SEWP V ordering period will be extended to April 30, 2026, and the current total IDIQ maximum value of the contracts will remain unchanged.

4. **FAR 6.303-2(b)(4) – An identification of the statutory authority permitting other than full and open competition:**

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(2), as implemented by FAR 6.302-2, Unusual and compelling urgency.

5. **FAR 6.303-2(b)(5) – A demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited:**

The rationale supporting the use of 10 U.S.C. 3204(a)(2), is described below:

Failure to extend SEWP V would result in a loss of the Best in Class contract:

NASA SEWP, now in its fifth iteration, has been utilized by NASA and other federal agencies for over 30 years. This acquisition has been competed five times before and has spanned over three decades. The NASA SEWP contracts were initially awarded as an agency-wide source for high-end computing systems suitable for engineers and scientists working on NASA’s core mission responsibilities for Earth and Space Sciences and Space Flight. In the early 1990s, NASA was asked by the General Services Administration (GSA) to be the pilot program for the then-new concept of IT GWACs. The first SEWP contracts quickly became a model contract vehicle for large-scale Indefinite Delivery Indefinite Quantity (IDIQ) IT fixed-price product contracts.

The current SEWP contracts are open to NASA civil employees, NASA contractors, federal agencies, and federal agency contractors. With over 140+ pre-competed Contract Holders, SEWP V offers a wide range of advanced technology including desktops and servers; network equipment; storage systems; cybersecurity tools; software products; cloud-based services; and video conferencing systems. Product-based services such as installation, training, maintenance, and warranty are also available through SEWP.

Best in Class (BIC) is a contracting and acquisition designation used to denote contracts that meet rigorous category management performance criteria as defined by the Office of Management and Budget (OMB). The NASA SEWP V contracts are designated as BIC for both products and services and represent a preferred government-wide solution that provides unique opportunities to leverage the government's buying power. Three Agencies have been designated as Executive Agents by OMB for IT Products and Services and therefore may issue GWACs: NASA, GSA, and the National Institutes of Health (NIH). The BIC designation allows acquisition experts to take advantage of NASA SEWP as a fully vetted, government-wide contracts/solutions. SEWP V supports a government-wide migration to solutions that are mature and market-proven; assists in the optimization of spending within the government-wide category management framework; and increases the transactional data available for agency level and government-wide analysis of buying behavior. As an OMB authorized GWAC, the SEWP contracts are utilized by all federal agencies. If SEWP V lapses before SEWP VI can be awarded, NASA and the rest of the federal government will lose access to this BIC solution.

Failure to extend SEWP V will result in financial and other injury for NASA and Other Agencies:

NASA processes approximately 50,000 SEWP V orders, totaling roughly \$10B every year. Allowing the SEWP V GWAC to lapse will affect the entire Federal Government's ability to timely and cost effectively procure IT services and supplies. As an OMB authorized GWAC, the SEWP contracts are utilized by all federal agencies and are available to federal agency contractors. Agencies turn to SEWP V for a wide range of IT products and services such as Information Technology & Networking (computer hardware, tablets, storage, etc.), Software and Cloud (Cloud computing, XaaS, etc.), Mobility and Communications, Supporting Technology (scanners, printers, etc.), AV/Conferencing (equipment, monitors, etc.), and Services. SEWP V is a streamlined acquisition approach that expedites IT requirements for various agencies. Additionally, the pricing of SEWP V's products and services have been determined to be reasonable in accordance with FAR 15.403-1(c)(1)(i)(B). Additionally, each contractor proposed a discount on their product(s) which remains for the life of the contract even when new technology is added, or list prices change due to market fluctuations. Therefore, failure to extend this BIC contract vehicle will result in financial and mission injury for all agencies that rely on the cost-effective solutions offered by SEWP V.

Failure to extend SEWP V will impact small businesses and agencies' abilities to meet Small Business Goals:

Among the 140+ contract holders, over 100 are small businesses. Approximately 80% of awarded dollars go to small businesses. A failure to extend SEWP V will impact the small businesses that regularly sell products and services to the Government. The impact could be devastating to the small businesses that have relied on SEWP V to generate revenue for their companies.

Additionally, agencies rely on SEWP V to meet their small business goals. The SEWP program provides access to over 100 qualified small businesses that provide a multitude of goods and services. The ITPO's Small Business Goal for 2024 was 31.6% and the SEWP V contract significantly contributed to the ITPO's ability to meet its small business goals. If SEWP V is not extended, the ITPO's ability to procure from qualified small businesses is greatly impacted.

Failure to extend SEWP V will be detrimental to the NASA SEWP Program Management Office (PMO):

The NASA SEWP Program currently employs approximately 120 individuals (both contractor and civil servant). The NASA SEWP PMO operates on a non-profit, self-contained Full Cost Accounting Budget by collecting a fee from the ordering agencies for every order placed. The fees are set solely to fund the services and staff provided by the NASA SEWP Program Management Office (PMO). If SEWP V is not extended, the SEWP Program will be negatively affected because it will not be able to bring in the revenue that it collects from the fees that it uses to run the program office. This includes funding the salaries

of those who support the program. Additionally, these current employees will be needed to administer the SEWP VI program and losing them at the end of the SEWP V will have a negative impact on the Government.

Demonstrate the urgency was not created as a result of delay in processing the acquisition:

The SEWP VI acquisition was initiated 24 months prior to SEWP V contract expiration. At the start of the acquisition process, meetings were held with the key members of the source selection evaluation board of SEWP V to assess lessons learned from the previous SEWP acquisitions. Discussions were held to identify how to expand the scope and maximize the opportunity for small businesses on contract. There were also meetings held with current SEWP V contract holders on ways that SEWP V could improve the program goals to better meet the needs of end users. Lastly, the CO and Technical Subject Matter Expert have been in direct contact with contracting officers and other knowledgeable personnel associated with GWACs of similar scopes. Due to an unprecedented amount of Industry interest, questions (6,800+), and fact finding, an extension to SEWP V is necessary. The urgency for extending SEWP V does not result from delay in processing the acquisition, rather it is a result of the highly complex SEWP VI acquisition process involving multiple stakeholders (internal and external to NASA) described above.

6. FAR 6.303-2(b)(6) – A description of the efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies:

The Contracting Officer has determined that this action is exempt from the notice required in FAR 5.202(a)(2), because unusual and compelling urgency precludes competition to the maximum extent practicable and the Government would be seriously financially injured if the agency complies with the publicizing and response time periods specified in FAR 5.203. All eligible SEWP V contract holders will be given the opportunity to extend their current contracts.

7. FAR 6.303-2(b)(7) – A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer's signature on this document indicates that the Contracting Officer has determined that the anticipated cost to the government will be fair and reasonable. The Contractor shall be required to submit a proposal to be evaluated and negotiated by the Government. Prior to execution of the contractual instruments, a proposal analysis will be performed. The proposal analysis will ensure that the final agreed-to price for the contract action is fair and reasonable.

SEWP V allows for competition among contract holders and provides discounts off of contract holder's commercial list price. Additionally, a price analysis will be conducted in accordance with FAR 15.305(a)(1) if offerors update any of their pricing.

8. FAR 6.303-2(b)(8) – Description of the market research conducted, and the results, or a statement of the reasons market research was not conducted (e.g., urgent, and compelling requirement):

A SEWP VI Request for Information (RFI), along with the scope descriptions, was posted on Sam.gov on March 23, 2023, with responses due April 14, 2023. That resulted in 378 total responses received in all groups. The individual group breakdown is as follows: Group A (products and product based services) received 95 interested responses; Group B (enterprise-wide services) received 128 interested responses; and Group C (mission-based services) received 155 interested responses. Each RFI response is carefully reviewed by technical experts. A SEWP VI Request for Proposals (RFP) is currently active on Sam.gov. Proposal evaluation will commence after the RFP due date. Additional market research has not been conducted because the SEWP V extension is supported by urgent and compelling rationale described above.

9. FAR 6.303-2(b)(9) – Any other facts supporting the use of other than full and open competition:

N/A

10. FAR 6.303-2(b)(10) – A listing of the sources, if any, that expressed an interest in writing in the acquisition:

N/A

11. FAR 6.303-2(b)(11) – A statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

The Agency is currently competing the SEWP VI follow-on GWAC.

ITPO Solutions For Enterprise-Wide Procurement V (SEWP V)
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SIGNATURE PAGE

I certify that the facts presented in this justification are accurate and complete.

Joanne Woytek

Digitally signed by Joanne
Woytek
Date: 2024.12.16 10:37:48 -05'00'

Technical Representative

I hereby certify that the above justification is complete and accurate to the best of my knowledge and belief.

JAMES GRIFFIN

Digitally signed by JAMES
GRIFFIN
Date: 2024.12.16 13:25:37
-05'00'

Contracting Officer

CONCURRENCES:

Carl Weih

Digitally signed by Carl
Weih
Date: 2024.12.20
10:53:03 -05'00'

Competition Advocate
ITPO

**Sarah
Pollock**

Digitally signed by Sarah
Pollock
Date: 2024.12.19
15:48 39 -08'00'

Procurement Officer/Head of Contracting Activity

**ITPO Solutions For Enterprise-Wide Procurement V (SEWP V)
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SIGNATURE PAGE**

Young Cho Digitally signed by Young
Cho
Date: 2025.01.08
10:05:17 -05'00'

Office of the General Counsel at Headquarters

Marvin Horne Digitally signed by Marvin
Horne
Date: 2025.01.16
17:01:28 -05'00'

Agency Competition Advocate

APPROVAL:

Marvin Horne Digitally signed by Marvin
Horne
Date: 2025.01.16
17:01:37 -05'00'

Senior Procurement Executive